

A Safer WORLD

Some of the strategies devised around the globe to discourage driving drunk



UK: A 12-month cancellation of licence for first-time offenders. Constant camera surveillance, patrolling and random breath-testing have made the system the most effective so far.



US: Different states follow different systems. In New York, cars are seized and drivers face a long and costly series of criminal and civil court battles to get their vehicles back.



SWEDEN: Fines are determined by various factors such as income level and amount of alcohol in the blood. Licence can be revoked for 2-36 months with an imprisonment term of up to six years.



NEW ZEALAND: Has compulsory breath-testing laws that empower the police to test any driver, any time and anywhere, even without a good cause to suspect drunken driving.



CANADA: Under the Would You Like Fries programme, plainclothed policemen are appointed near drive-through windows of fastfood chains. They stop suspicious cars and take necessary action.

amount to murder or culpable homicide. In such a situation, even the knowledge that the car may kill or injure someone fatally cannot be imputed," he asserted in court.

Waris Pathan, Salman Khan's lawyer, is all for making drunken driving laws stricter in the country. "But tougher laws can't work without a symbiotic relation between the law and the police. The police must be trained to arrest or detain only those who drink beyond the permissible limit and then drive." That's precisely the route that Mumbai's DCP Harish Bajjal took last year. He literally moved from court to court emphasising the need for stricter sentences, until the Bandra Metropolitan Court convicted five offenders to three days of imprisonment. "Before this, there wasn't a single case where the offender was imprisoned under Section 185 alone. They were caught only if they caused

an accident," he says.

Civil society is also responding. Restaurants are now taking cue from the police and hiring cars to drop tipsy customers home. Suhas Awchat, owner of the Goa Portugesa restaurant in Mumbai, is one such. The drive has managed to instil a sense of fear in the youth, too. "I always thought I could handle my car after having a couple of drinks," says Ashish Raikar, a 30-year-old software professional. "Now I prefer to hail a taxi to get back home even after having one drink," he says. Dinesh Mohan, professor of Transportation Safety at the Indian Institute of Technology, Delhi, is not surprised. "It's vigilant, serious and sustained policing that always wins hands-down. As has been found in other countries, it is the fear of being punished under the law that is always the greatest deterrent."

Ask Derek Rutherford and Aneurin Owen of the UK-based Global Alcohol Policy Alliance (GAPA), who are currently touring the country. They have had a taste of the Indian road—the relentless honking and pedestrians competing for space with a dizzying variety of vehicles—and both believe that driving here is not for the faint-hearted. "The UK has one of the highest permissible levels of blood alcohol levels, yet one of the lowest rates of drunken-driving incidents," says

Rutherford, chairman, GAPA. "The biggest deterrent has been the mandatory 12-month cancellation of licence for first-time offenders. And we enforced it through constant camera surveillance, patrolling and random breath-testing," he adds. A second offence can entail a fine of £5,000 (Rs 4.25 lakh) and/or up to three years in prison, while death due to drunken driving can lead to a life sentence for the offender. But even in the UK, the threat of arrest and punishment is losing its shine. "We have to think up new ways of dealing with the crime," admits Rutherford.

If every road tells a story, our roads are telling the story poorly, or telling it wrong. As India's gross domestic product grows, the number of people with cars is set to soar from eight in every thousand now to 11 by 2010—in 2000, only 0.5 per cent of Indians had a car. Every seven minutes, someone dies in an accident on Indian roads and every two minutes, someone is seriously injured. And with just one policeman per thousand people, it is the pedestrian who bears the brunt of everyday traffic violations. The road ahead is far from clear. But the spirited debate about what kind of sanctions should be agreed to has, for the first time, brought much-needed focus on a crime that often ends with the rich buying their way out of trouble and the poor paying with their lives.

with Swati Mathur in Mumbai

WILL TOUGH LAWS

WORK? The debate continues. With increasing awareness, the noose is tightening. In 2006, Mumbai youth Alistair Pereira killed and injured seven. His six-month prison term was enhanced to three years under harsher laws.



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